

JAZZ PHARMACEUTICALS IRELAND LIMITED et al v. QILU PHARMACEUTICAL (HAINAN) CO., LTD. et al

Plaintiff:	JAZZ PHARMACEUTICALS IRELAND LIMITED and PHARMA MAR, S.A.
Defendant:	QILU PHARMACEUTICAL (HAINAN) CO., LTD. and QILU PHARMA, INC.
Case Number:	3:2026cv07840
Filed:	June 26, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Robert Kirsch
Referring Judge:	Rukhsanah L Singh
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

This docket was last retrieved on July 7, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
July 7, 2026	Filing 6 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of JAZZ PHARMACEUTICALS IRELAND LIMITED, PHARMA MAR, S.A. (CALLO, ALEXANDER)
June 30, 2026	Filing 5 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of JAZZ PHARMACEUTICALS IRELAND LIMITED, PHARMA MAR, S.A. (SULLIVAN, SARAH)
June 29, 2026	Filing 4 SUMMONS ISSUED as to QILU PHARMA, INC., QILU PHARMACEUTICAL (HAINAN) CO., LTD.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (arm)
June 29, 2026	Filing 3 AO120 Patent Form filed. (Attachments: #1 Complaint and Exhibits) (arm)

Date Filed	Document Text
June 29, 2026	Notice of Judicial Preferences. #Click here for the Judge's Individual Procedure Requirements. (arm)
June 26, 2026	Judge Robert Kirsch and Magistrate Judge Rukhsanah L. Singh added. (arm)
June 26, 2026	Filing 2 Corporate Disclosure Statement by JAZZ PHARMACEUTICALS IRELAND LIMITED, PHARMA MAR, S.A.. (LIZZA, CHARLES)
June 26, 2026	Filing 1 COMPLAINT against QILU PHARMA, INC., QILU PHARMACEUTICAL (HAINAN) CO., LTD. (Filing and Admin fee \$ 405 receipt number ANJDC-17590091) , Related Case Selected, filed by JAZZ PHARMACEUTICALS IRELAND LIMITED, PHARMA MAR, S.A.. (Attachments: #1 Civil Cover Sheet) (LIZZA, CHARLES)

. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: Jazz Pharmaceuticals Ireland Limited (Ireland) and Pharma Mar, S.A. (Spain)

Defendant: Qilu Pharmaceutical (Hainan) Co., Ltd. (China) and Qilu Pharma, Inc. (Pennsylvania)

Plaintiff's Counsel: [Saul Ewing LLP](#)

Case Identification: [3:26-cv-07840](#), D.N.J., 06/26/2026

Venue Allegations: Venue is alleged to be proper in the District of New Jersey because Defendant Qilu Ltd. is a foreign corporation and may be sued in any judicial district, and Defendant Qilu Inc. maintains a regular and established place of business in the district.

Core Dispute: Plaintiffs allege that Defendants' submission of an Abbreviated New Drug Application (ANDA) seeking FDA approval to market a generic version of the small cell lung cancer drug Zepzelca® (lurbinectedin) constitutes an act of infringement of three U.S. patents.

Technical Context: The technology concerns specific methods of administering the chemotherapy drug lurbinectedin to treat small cell lung cancer (SCLC) by implementing dose-reduction regimens to manage specific, severe adverse events.

Key Procedural History: This action was filed under the Hatch-Waxman Act, triggered by Defendants' filing of ANDA No. 221419 and their subsequent notice letter to Plaintiffs on May 13, 2026. The patents-in-suit are listed in the FDA's "Orange Book" as covering Zepzelca®, which received accelerated FDA approval in 2020 for treating metastatic SCLC.

Case Timeline	
Date	Event
2019-11-21	Earliest Priority Date for '806, '890, and '490 Patents
2020-06-15	FDA grants accelerated approval for Zepzelca® (NDA 213702)
2025-06-10	U.S. Patent No. 12,324,806 ('806 Patent) Issues
2025-07-XX	'806 Patent listed in FDA Orange Book (reported as "since July 2025")
2025-10-02	FDA updates Zepzelca® approval for maintenance therapy
2025-10-07	U.S. Patent No. 12,433,890 ('890 Patent) Issues
2025-10-14	U.S. Patent No. 12,440,490 ('490 Patent) Issues
2025-11-XX	'890 and '490 Patents listed in FDA Orange Book (reported as "since November 2025")
2026-05-13	Plaintiffs receive notice letter regarding ANDA No. 221419
2026-06-26	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis U.S. Patent No. 12,324,806 - Method of Treating SCLC and Managing Hepatotoxicity (Compl. ¶27; '806 Patent, cover, issued June 10, 2025) The Invention Explained

Problem Addressed: The use of the chemotherapy agent lurbinectedin for treating Small Cell Lung Cancer (SCLC) is associated with significant side effects, including hepatotoxicity (liver damage), which can be severe enough to require treatment cessation. ('806 Patent, abstract; '806 Patent, col. 9:1-5). The Patented Solution: The invention provides a specific dosing method to manage this toxicity. It claims a regimen where a patient who has progressed after platinum-based chemotherapy is first given a standard 3.2 mg/m² dose of lurbinectedin. If that patient then experiences severe (Grade ≥3) hepatotoxicity, a subsequent, reduced dose of 2.6 mg/m² is administered, but only after the patient's liver toxicity has subsided to Grade 1 or less and key blood counts (platelets, neutrophils) have recovered to safe levels. ('806 Patent, abstract; '806 Patent, col. 110:30-111:6). The chemical structure of the active ingredient, lurbinectedin, is provided in the complaint (Compl. ¶26).

Technical Importance: This dose-modification strategy allows for continued treatment with an effective drug in a patient population with limited options, potentially improving outcomes by managing adverse events that would otherwise halt therapy. ('806 Patent, col. 2:1-25).

Key Claims at a Glance

- The complaint asserts infringement of at least Claim 1. (Compl. ¶55).
- The essential elements of independent Claim 1 are:
- A method of treating metastatic SCLC in a patient with disease progression after platinum-based chemotherapy;
- The method comprises administering a reduced dose of 2.6 mg/m² of lurbinectedin within 35 days of having received an initial dose of 3.2 mg/m²;
- This reduced dose is administered only if the patient previously experienced Grade ≥3 hepatotoxicity subsequent to the initial dose; and
- At the time of receiving the reduced dose, the patient must meet specific criteria: metastatic SCLC, a platelet count of at least 100,000/mm³, an absolute neutrophil count of at least 1500 cells/mm³, and hepatotoxicity of Grade 1 or less.
- The complaint reserves the right to assert other claims. (Compl. ¶¶53; Compl. ¶56).

U.S. Patent No. 12,433,890 - Method of Treating SCLC and Managing Neutropenia

(Compl. ¶30; '890 Patent, cover, issued October 7, 2025)

The Invention Explained

- Problem Addressed:** Lurbinectedin treatment can cause severe neutropenia (a sharp drop in a type of white blood cell), which increases the risk of serious infection and can be a dose-limiting toxicity. ('890 Patent, abstract; '890 Patent, col. 8:49-53).
- The Patented Solution:** This patent claims a method for managing neutropenia. If a patient receiving a 3.2 mg/m² dose of lurbinectedin experiences Grade 4 neutropenia or any grade of febrile neutropenia, the next dose is reduced to 2.6 mg/m². This subsequent reduced dose is only given if the patient's platelet and neutrophil counts have recovered to specified safe levels. ('890 Patent, abstract; '890 Patent, col. 112:26-113:7).
- Technical Importance:** The invention provides a defined, criteria-based protocol for managing a common and dangerous side effect of lurbinectedin, enabling physicians to continue treating patients who respond to the drug but suffer from this specific toxicity.

Key Claims at a Glance

- The complaint asserts infringement of at least Claim 1. (Compl. ¶70).
- The essential elements of independent Claim 1 are:
- A method of treating metastatic SCLC in a patient with disease progression after platinum-based chemotherapy;
- The method comprises administering a reduced dose of 2.6 mg/m² of lurbinectedin within 35 days of having received an initial dose of 3.2 mg/m²;
- This reduced dose is administered only if the patient previously experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to the initial dose; and

- At the time of receiving the reduced dose, the patient must meet specific criteria: metastatic SCLC, a platelet count of at least 100,000/mm³, and an absolute neutrophil count of at least 1500 cells/mm³.
- The complaint reserves the right to assert other claims. (Compl. ¶¶68; Compl. ¶71).

U.S. Patent No. 12,440,490 - Method of Treating SCLC and Managing Thrombocytopenia

(Compl. ¶33; '490 Patent, cover, issued October 14, 2025)

The Invention Explained

□ **Technology Synopsis:** This patent is directed to methods of managing thrombocytopenia (a deficiency of platelets in the blood), another potential adverse event of lurbinectedin treatment. The invention claims a dose-reduction regimen from 3.2 mg/m² to 2.6 mg/m² for SCLC patients who experience Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia, contingent on the patient meeting specified hematological recovery criteria before the subsequent dose. ('490 Patent, abstract; '490 Patent, col. 114:2-25).

Key Claims at a Glance

- **Asserted Claims:** Claim 1 is asserted. (Compl. ¶85).
- **Accused Features:** The complaint alleges that the proposed labeling for Defendants' generic lurbinectedin product will instruct physicians to implement the claimed dose-reduction strategy in response to the specified grades of thrombocytopenia. (Compl. ¶¶87-88).

III. The Accused Instrumentality

- **Product Identification:** The accused instrumentality is Defendants' "Qilu's Generic Product," a generic version of Zepzelca® (lurbinectedin) for injection, 4 mg/vial, which is the subject of Abbreviated New Drug Application (ANDA) No. 221419 filed with the FDA. (Compl. ¶¶9; Compl. ¶10; Compl. ¶38).
- **Functionality and Market Context:** The product is a generic antineoplastic agent intended for intravenous infusion to treat adult patients with metastatic small cell lung cancer (SCLC) whose disease has progressed on or after platinum-based chemotherapy. (Compl. ¶40). The complaint alleges that the proposed product label for Qilu's Generic Product will instruct medical professionals to administer the drug according to the same specific, toxicity-based dose modification schedules that are claimed in the patents-in-suit. (Compl. ¶¶57; Compl. ¶72; Compl. ¶87). The filing of the ANDA is the statutory act of infringement that gives rise to this lawsuit under the Hatch-Waxman Act. (Compl. ¶10).

IV. Analysis of Infringement Allegations

The complaint's infringement theory is one of induced infringement, based on the allegation that the proposed label for Qilu's Generic Product will direct medical professionals to perform the patented methods.

'806 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy,	The proposed labeling for Qilu's Generic Product will direct its use for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy.	¶57	col. 110:30-33
said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m ² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m ² of lurbinectedin by intravenous infusion as a monotherapy...	The proposed labeling will direct administering a reduced dose of 2.6 mg/m ² following a prior dose of 3.2 mg/m ² .	¶57	col. 110:33-46
...to a patient having at the time of the administration of the dose of 2.6 mg/m ² of lurbinectedin: a) metastatic SCLC with disease progression after platinum-based chemotherapy; b) a platelet count of at least 100,000/mm ³ ; c) an absolute neutrophil count of at least 1500 cells/mm ³ ; and d) ≤ Grade 1 hepatotoxicity;	The proposed labeling will direct that the reduced dose be administered when the patient has a platelet count, neutrophil count, and hepatotoxicity level meeting these criteria.	¶57	col. 110:47-56
wherein the patient previously experienced ≥ Grade 3 hepatotoxicity subsequent to receiving the dose of 3.2 mg/m ² of lurbinectedin.	The proposed labeling will identify Grade ≥3 hepatotoxicity as an adverse reaction to the 3.2 mg/m ² dose that triggers the dose reduction.	¶57	col. 110:57-60

'890 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy,	The proposed labeling for Qilu's Generic Product will direct its use for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy.	¶72	col. 112:26-29
said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m ² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m ² of lurbinectedin by intravenous infusion as a monotherapy...	The proposed labeling will direct administering a reduced dose of 2.6 mg/m ² following a prior dose of 3.2 mg/m ² .	¶72	col. 112:29-42
...to a patient having at the time of the administration of the dose of 2.6 mg/m ² of lurbinectedin: a) metastatic SCLC with disease progression after platinum-based chemotherapy, b) a platelet count of at least 100,000/mm ³ , and c) an absolute neutrophil count of at least 1500 cells/mm ³ ,	The proposed labeling will direct that the reduced dose be administered when the patient has a platelet count and neutrophil count meeting these criteria.	¶72	col. 112:43-52
wherein the patient previously experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving the dose of 3.2 mg/m ² of lurbinectedin.	The proposed labeling will identify Grade 4 neutropenia and febrile neutropenia as adverse reactions to treatment with the 3.2 mg/m ² dose that trigger the dose reduction.	¶72	col. 112:53-57

Identified Points of Contention

Scope Questions: A primary question for the court will be whether the instructions on the Defendants' proposed label are coextensive with the steps recited in the asserted claims. The dispute may turn on whether the label **requires** a physician to follow the claimed method, or if

it merely presents information that allows for, but does not mandate, the infringing course of action.

Technical Questions: An issue may arise regarding the definitions of clinical adverse events (e.g., "Grade ≥ 3 hepatotoxicity," "Grade 4 neutropenia"). While these are generally based on standard criteria like the NCI CTCAE (referenced in the patents), the way these events are identified and acted upon in the proposed label will be compared against the specific sequence and criteria required by the claims.

V. Key Claim Terms for Construction

The Term: "previously experienced ... subsequent to receiving the dose" (from Claim 1 of both the '806 and '890 patents)

Context and Importance: This temporal and causal language is at the heart of the claimed method. The infringement analysis will depend on whether the proposed generic label instructs a specific sequence where a defined adverse event (e.g., Grade ≥ 3 hepatotoxicity) is identified as occurring **after** an initial 3.2 mg/m² dose and **before** a decision is made to administer a reduced 2.6 mg/m² dose. Practitioners may focus on this term because it links the observation of a specific toxicity to the administration of a specific prior dose, forming the core logic of the invention.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The claims do not specify a maximum time between receiving the dose and experiencing the toxicity. The specification's description of clinical trials, where adverse events are monitored over the course of a treatment cycle, may support an interpretation where any qualifying toxicity that appears during the cycle following the 3.2 mg/m² dose is sufficient. (e.g., '806 Patent, col. 12:22-29).

Evidence for a Narrower Interpretation: The specification describes a structured treatment cycle, typically 21 days. ('806 Patent, col. 12:39-44). A defendant may argue that "subsequent to" implies a direct and proximate causal relationship within a single treatment cycle, and that a toxicity appearing long after the initial dose might not qualify. Language detailing when patients are monitored and when decisions about subsequent doses are made could be used to argue for a more constrained temporal scope.

The Term: "a patient having at the time of the administration of the dose of 2.6 mg/m² of lurbinectedin... [specific clinical criteria]" (from Claim 1 of both the '806 and '890 patents)

Context and Importance: This term defines the necessary state of the patient immediately prior to the administration of the reduced dose. The infringement case hinges on whether the accused label instructs physicians to verify that all these conditions (e.g., platelet count $\geq 100,000/\text{mm}^3$, neutrophil count $\geq 1500 \text{ cells}/\text{mm}^3$, and resolution of the specific toxicity) are met before proceeding with the reduced dose.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The patent language sets clear, objective numerical and grade-based thresholds. Language in the specification describes these as "criteria for lurbinectedin administration" ('806 Patent, col. 4:22-25), suggesting they are mandatory prerequisites for safe and effective treatment under the patented method.

Evidence for a Narrower Interpretation: A defendant might argue that its label presents these criteria as general guidelines rather than the strict, conjunctive "and" list required by the claim. The specification discusses various scenarios for dose delays and treatment modifications ('806 Patent, col. 16:1-12), which could suggest that a physician has discretion that might deviate from the strict checklist recited in the claim, and that the accused label reflects this clinical flexibility rather than the rigid claim language.

VI. Other Allegations

Indirect Infringement: Plaintiffs allege that Defendants will induce infringement under 35 U.S.C. § 271(b) (Compl. ¶¶56; Compl. ¶71; Compl. ¶86). The basis for this allegation is that Defendants, by seeking approval for their generic product with its proposed labeling, intend for medical professionals to follow the instructions on that label, which allegedly direct the performance of the patented methods of treatment. (Compl. ¶¶57; Compl. ¶72; Compl. ¶87). The complaint alleges this constitutes specific intent and active encouragement. (Compl. ¶¶59; Compl. ¶74; Compl. ¶89).

Willful Infringement: The complaint alleges that Defendants were aware of the patents-in-suit, citing the May 13, 2026 notice letter and the patents' listing in the FDA's Orange Book. (Compl. ¶¶52; Compl. ¶67; Compl. ¶82). Plaintiffs further contend that Defendants' infringement is willful because their stated legal and factual bases for non-infringement and invalidity are "devoid of an objective good faith basis," making the case "exceptional" under 35 U.S.C. § 285. (Compl. ¶¶63; Compl. ¶78; Compl. ¶93).

VII. Analyst's Conclusion: Key Questions for the Case

□ A core issue will be one of **label-claim correspondence:** Will the court find that the instructions for use in the Defendants' proposed generic drug label direct or encourage medical professionals to perform each step of the claimed toxicity management methods? The analysis will center on whether the proposed label mandates the specific sequence of dosing, toxicity observation, and patient-state confirmation recited in the claims.

□ A second key question will involve **patentability of clinical regimens:** Assuming the label does induce infringement, the focus will shift to validity. The court will need to determine if the claimed methods—which specify dosages and clinical criteria derived from trial data—are a non-obvious, patent-eligible invention, or if they represent the routine, unpatentable optimization of a known drug for known side effects.

□ Finally, a central question in Hatch-Waxman litigation is whether the defendant's ANDA notice letter provided a sufficient "detailed statement of the factual and legal bases" for its invalidity and/or non-infringement positions. The complaint's assertion that the letter's alleged deficiencies constitute an admission of infringement and validity (Compl. ¶¶42-45) raises the threshold question of whether Defendants will be procedurally limited in the defenses they can raise.

Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 1 of 298 PageID: 1 Charles M. Lizza Sarah A. Sullivan Alexander L. Callo SAUL EWING LLP One Riverfront Plaza 1037 Raymond Blvd., Suite 1520, Newark, NJ 07102-5426 (973) 286-6715 clizza@saul.com Attorneys for Plaintiffs UNITED STATES DISTRICT COURT DISTRICT OF NEW JERSEY JAZZ PHARMACEUTICALS IRELAND LIMITED and PHARMA MAR, S.A., Plaintiffs, v. QILU PHARMACEUTICAL (HAINAN) CO., LTD. and QILU PHARMA, INC., Defendants. Civil Action No. _____ (Filed Electronically) COMPLAINT FOR PATENT INFRINGEMENT Plaintiffs Jazz Pharmaceuticals Ireland Limited (“Jazz”) and Pharma Mar, S.A. (“Pharma Mar”) (collectively, “Plaintiffs”), for their Complaint against Defendants Qilu Pharmaceutical (Hainan) Co., Ltd. (“Qilu Ltd.”) and Qilu Pharma, Inc. (“Qilu Inc.”) (collectively, “Qilu”), hereby allege as follows: THE PARTIES 1. Plaintiff Jazz is a corporation organized and existing under the laws of Ireland, having a principal place of business at Fifth Floor, Waterloo Exchange, Waterloo Road, Dublin, N37 AX84, Ireland. 1 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 2 of 298 PageID: 2 2. Plaintiff Pharma Mar is a corporation organized and existing under the laws of Spain, having a principal place of business at Avenida De Los Reyes, 1, 28770 - Colmenar Viejo, Madrid, Spain. 3. On information and belief, Defendant Qilu Ltd. is a corporation organized and existing under the laws of China having a principal place of business at Room A, No. 273, Nanhai Boulevard, State Hi-and-New Tech Park, Haikou, Hainan, 570314, China. 4. On information and belief, Qilu Ltd., by itself and/or through its affiliates and agents, is in the business of, inter alia, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States. 5. On information and belief, Defendant Qilu Inc. is a corporation organized and existing under the laws of Pennsylvania having a principal place of business at 101 Lindenwood Drive, Suite 225, Malvern, Pennsylvania 19355. 6. On information and belief, Qilu Inc., by itself and/or through its affiliates and agents, is in the business of, inter alia, manufacturing, marketing, importing, preparing, and selling generic pharmaceutical products that it distributes in the State of New Jersey and throughout the United States. 7. On information and belief, Qilu Inc. is a wholly-owned subsidiary and the United States agent of Qilu Ltd. 8. On information and belief, Qilu Ltd. and Qilu Inc. are agents of each other with respect to the development, regulatory approval, marketing, sale, and/or distribution of generic products within the United States. On information and belief, the acts of Qilu Ltd. and Qilu Inc. 2 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 3 of 298 PageID: 3 complained of herein were done with the cooperation, participation, and assistance of, and at least in part for the benefit of, each other. 9. On information and belief, Qilu Ltd. and Qilu Inc. have cooperated and assisted in the preparation and filing of Abbreviated New Drug Application (“ANDA”) No. 221419 (“Qilu ANDA”) and will be involved in the manufacture, importation, marketing, and/or sale of the drug that is the subject of the Qilu ANDA, if approved by the United States Food and Drug Administration (“FDA”). NATURE OF THE ACTION 10. This is a civil action for the infringement of United States Patent Nos. 12,324,806 (“the ’806 Patent”), 12,433,890 (“the ’890 Patent”), and 12,440,490 (“the ’490 Patent”) (collectively, “the Zepzelca® Patents”) under the Patent Laws of the United States, 35 U.S.C. § 100 et seq., arising from Qilu’s filing of ANDA No. 221419 with the FDA seeking approval to market a generic version of the pharmaceutical product Zepzelca® (lurbectedin) for injection, for intravenous use, 4 mg/vial, before the expiration of the Zepzelca® Patents covering Zepzelca®’s use. JURISDICTION AND VENUE 11. This Court has jurisdiction over the subject matter of this action, including Counts I – III against Qilu, pursuant to 28 U.S.C. §§ 1331 and 1338. 12. This Court has personal jurisdiction over Qilu by virtue of the fact that, inter alia, Qilu has committed the tortious act of patent

infringement pursuant to 35 U.S.C. § 271(e)(2)(A) that has led to foreseeable harm and injury to Plaintiffs in the State of New Jersey and throughout the United States. 13. This Court has personal jurisdiction over Qilu by virtue of the fact that, on information and belief, Qilu, either directly or through its affiliates, regularly and continuously 3 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 4 of 298 PageID: 4 does or solicits business in New Jersey, engages in other persistent courses of conduct in New Jersey, and/or derives substantial revenue from services or things used or consumed in New Jersey, including by selling its pharmaceutical products in New Jersey and, therefore, can reasonably expect to be subject to jurisdiction in the New Jersey courts. On information and belief, Qilu conducts marketing and sales activities in the State of New Jersey, including, but not limited to, distribution, marketing, and sales of pharmaceutical products to New Jersey residents that are continuous and systematic. On information and belief, if the Qilu ANDA is approved, Qilu will market and sell its generic version of Zepzelca® in New Jersey. 14. This Court further has personal jurisdiction over Qilu Ltd. by virtue of the fact that Qilu Ltd. has previously submitted to the jurisdiction of this Court and availed itself of this Court by consenting to this Court's jurisdiction and asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to, e.g., Takeda Pharmaceutical Co. Ltd. v. Qilu Pharmaceutical (Hainan) Co., Ltd., No. 2:26-cv-01633 (D.N.J.); Impax Laboratories, LLC v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 2:25-cv-01962 (D.N.J.); Astellas Pharma Inc., et al. v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 3:24-cv-08217 (D.N.J.); Janssen Pharmaceuticals, Inc., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-07094 (D.N.J.); and Eli Lilly & Co., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-05847 (D.N.J.). 15. Alternatively, this Court may exercise jurisdiction over Qilu Ltd. pursuant to Federal Rule of Civil Procedure 4(k)(2) because (a) Plaintiffs' claims arise under federal law; (b) Qilu Ltd. is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Qilu Ltd. has sufficient contacts with the United States as a whole, including, but not limited to, manufacturing and/or selling pharmaceutical products distributed throughout the United 4 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 5 of 298 PageID: 5 States, directly or through related entities, such that this Court's exercise of jurisdiction over Qilu Ltd. satisfies due process. 16. This Court has personal jurisdiction over Qilu Inc. On information and belief, Qilu Inc. regularly conducts business in New Jersey and has an established place of business in New Jersey. Qilu Inc. has an active business entity status registered with the New Jersey Department of Treasury under the business entity identification number 0400704255, maintains a business address at 104 Carnegie Center, Suite 212, Princeton, New Jersey 08540, and has a corporate agent for service of process at 820 Bear Tavern Road, West Trenton, New Jersey 08628. 17. This Court also has personal jurisdiction over Qilu Inc. by virtue of the fact that, on information and belief, Qilu Inc. regularly and continuously transacts business within New Jersey, either directly or through its affiliates—including Qilu Healthcare, Inc., a company registered with the State of New Jersey's Department of Health (Reg. No. 5005245) as a drug manufacturer and distributor with a principal place of business at 104 Carnegie Center, Suite 212, Princeton, New Jersey 08540—including by selling pharmaceutical products in New Jersey. 18. This Court further has personal jurisdiction over Qilu Inc. by virtue of the fact that Qilu Inc. has previously submitted to the jurisdiction of this Court and availed itself of this Court by consenting to this Court's jurisdiction and asserting counterclaims in civil actions initiated in this jurisdiction, including, but not limited to, e.g., Impax Laboratories, LLC v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 2:25-cv-01962 (D.N.J.); Astellas Pharma Inc., et al. v. Qilu Pharmaceutical (Hainan) Co., Ltd., et al., No. 3:24-cv-08217 (D.N.J.); Janssen Pharmaceuticals, Inc., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-07094

(D.N.J.); and Eli Lilly & Co., et al. v. Qilu Pharmaceutical Co., Ltd., et al., No. 2:24-cv-05847 (D.N.J.). 19. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and 1400(b). 5 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 6 of 298 PageID: 6 20. Venue is proper in this Judicial District for Qilu Ltd. because, inter alia, Qilu Ltd. is a foreign corporation not residing in any United States district and may be sued in any judicial district. 21. Venue is proper in this Judicial District for Qilu Inc. On information and belief, Qilu Inc. has an active business entity identification number in the State of New Jersey (0400704255) and maintains a regular and established place of business at 104 Carnegie Center, Suite 212, Princeton, New Jersey 08540. On information and belief, Qilu Inc. has employees in New Jersey. 22. On information and belief, based on Qilu's connections to New Jersey, discoverable information in its possession, custody, or control regarding the Qilu ANDA will likely show that Qilu engaged in activities in New Jersey relevant to the preparation and/or submission of the Qilu ANDA and therefore committed acts of infringement within this Judicial District. 23. Venue is further proper in this Judicial District as to Qilu because, inter alia, Qilu has committed, or aided, abetted, contributed to, and/or participated in the commission of acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture Zepzelca® for sale and use throughout the United States, including within the State of New Jersey. THE ZEPZELCA® NDA 24. Pharma Mar USA, Inc., a wholly owned subsidiary of Pharma Mar, filed New Drug Application ("NDA") No. 213702 for "Zepzelca® (lurbinectedin) injection, 4 mg lyophilized powder in a single-dose vial." The FDA granted accelerated approval for NDA No. 213702 on June 15, 2020, for the treatment of adult patients with metastatic small cell lung cancer ("SCLC") with disease progression on or after platinum-based chemotherapy. On October 2, 2025, the FDA approved lurbinectedin in combination with atezolizumab or atezolizumab and hyaluronidase-tqjs for the maintenance treatment of adult patients with extensive-stage SCLC whose disease has not 6 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 7 of 298 PageID: 7 progressed after first-line induction therapy with atezolizumab or atezolizumab and hyaluronidase- tqjs, carboplatin and etoposide. 25. Pharma Mar USA, Inc. transferred and assigned NDA No. 213702 to Jazz. 26. Lurbinectedin is a compound that can be referred to by any of several chemical names, including (1'R,6R,6aR,7R,13S,14S,16R)-8,14-dihydroxy-6',9-dimethoxy-4,10,23- trimethyl-19-oxo-2',3',4',6,7,9',12,13,14,16-decahydro-6aH-spiro[7,13-azano-6,16- (epithiopropanooxymethano) [1,3]dioxolo[7,8]isoquinolino[3,2-b][3]benzazocine-20,1'- pyrido[3,4-b]indol]-5-yl acetate, and has the following chemical structure: THE PATENTS-IN-SUIT 27. On June 10, 2025, the '806 Patent, entitled "Method of Treating SCLC and Managing Hepatotoxicity," was duly and legally issued to Pharma Mar. A true and correct copy of the '806 Patent is attached hereto as Exhibit A. 28. The '806 Patent claims, inter alia, methods of treating metastatic SCLC in patients with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a 7 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 8 of 298 PageID: 8 monotherapy to certain patients who previously experienced ≥ Grade 3 hepatotoxicity subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin. 29. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the '806 Patent is listed in the FDA's Approved Drug Products with Therapeutic Equivalence Evaluations (also known as the "Orange Book") for Zepzelca® for intravenous use, 4 mg/vial. 30. On October 7, 2025, the '890 Patent, entitled "Method of Treating SCLC and Managing Neutropenia," was duly and legally issued to Pharma Mar. A true and correct copy of the '890 Patent is attached hereto as Exhibit B. 31. The '890 Patent claims, inter alia, methods of treating

metastatic SCLC in patients with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to certain patients who previously experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin. 32. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the '890 Patent is listed in the FDA's Orange Book for Zepzelca® for intravenous use, 4 mg/vial. 33. On October 14, 2025, the '490 Patent, entitled "Method of Treating SCLC and Managing Thrombocytopenia," was duly and legally issued to Pharma Mar. A true and correct copy of the '490 Patent is attached hereto as Exhibit C. 34. The '490 Patent claims, inter alia, methods of treating metastatic SCLC in patients with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to certain patients who previously experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin. 35. In accordance with 21 U.S.C. § 355(b)(1) and 21 C.F.R. § 314.53, the '490 Patent is listed in the FDA's Orange Book for Zepzelca® for intravenous use, 4 mg/vial. 36. Pharma Mar owns the Zepzelca® Patents. 37. Pursuant to an agreement, as amended, entered into between Pharma Mar and Jazz, Jazz was granted an exclusive license to the Zepzelca® Patents, with the right to sue for infringement of the Zepzelca® Patents in the United States. Claims for relief – patent infringement 38. By a letter dated May 13, 2026 (the "Qilu Notice Letter"), Qilu informed Plaintiffs that the FDA had received the Qilu ANDA, submitted by Qilu, seeking approval to manufacture, use, and/or sell "lurbinectedin for injection, 4 mg/vial" ("Qilu's Generic Product") prior to the expiration of the Zepzelca® Patents. 39. On information and belief, Qilu submitted the Qilu ANDA to the FDA under § 505(j) of the Federal Food, Drug, and Cosmetic Act ("FDCA"), seeking approval to engage in the commercial manufacture, use, and sale of Qilu's Generic Product as a generic version of Zepzelca®. 40. On information and belief, the Qilu ANDA seeks FDA approval of Qilu's Generic Product for the indication of treatment of adult patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. 41. The Qilu Notice Letter also advised Plaintiffs that Qilu's ANDA submission includes certifications under 21 U.S.C. § 355(j)(2)(A)(vii)(IV) that, in Qilu's opinion, certain 9 Case 3:26-cv-07840-RK-RLS Document 1 Filed 06/26/26 Page 10 of 298 PageID: 10 claims of the Zepzelca® Patents are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, sale, and/or use of Qilu's Generic Product. 42. The Qilu Notice Letter does not allege non-infringement of any claims of the Zepzelca® Patents. 43. By not identifying non-infringement defenses for any claims of the Zepzelca® Patents, Qilu admits Qilu's Generic Product meets all limitations of those claims. 44. The Qilu Notice Letter does not allege invalidity under 35 U.S.C. § 101 or unenforceability for any claim of the Zepzelca® Patents. 45. By not identifying invalidity defenses under 35 U.S.C. § 101 or unenforceability for any claim of the Zepzelca® Patents, Qilu admits that the Zepzelca® Patents are valid under 35 U.S.C. § 101 and enforceable. 46. There is an actual, real, immediate, and justiciable controversy between Plaintiffs and Qilu regarding the infringement, validity, and enforceability of the Zepzelca® Patents. 47. On information and belief, following FDA approval of the Qilu ANDA, Qilu will act in concert to make, use, offer to sell, or sell Qilu's Generic Product throughout the United States, or import such a generic product into the United States. 48. On information and belief, following FDA approval of the Qilu ANDA, Qilu intends to directly benefit from sales of

Qilu's Generic Product. 49. Plaintiffs commenced this action against Qilu within 45 days of receiving the Qilu Notice Letter pursuant to 21 U.S.C. § 355(j)(5)(B)(iii). Count I (Infringement of the '806 Patent) 50. herein. 10 Plaintiffs incorporate each of the preceding paragraphs 1 to 49 as if fully set forth

The Qilu Notice Letter indicates Qilu's intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product prior to expiration of the '806 Patent.

52. Qilu is aware of the '806 Patent, including as demonstrated by the Qilu Notice Letter. Also, on information and belief, Qilu is aware of the '806 Patent by virtue of its listing in the Orange Book since July 2025.

53. The submission of Qilu's ANDA seeking approval to engage in the commercial manufacture, use, offer for sale, or sale of Qilu's Generic Product, prior to the expiration of the '806 Patent, constitutes infringement of one or more claims of the '806 Patent under 35 U.S.C. § 271(e)(2)(A).

54. On information and belief, Qilu intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product with the proposed labeling immediately and imminently upon final approval of the Qilu ANDA.

55. The '806 Patent claims, inter alia, methods of treating metastatic SCLC using lurbinectedin in patients who have experienced $\geq$ Grade 3 hepatotoxicity subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin. Claim 1 recites:

A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to a patient having at the time of the administration of the dose of 2.6 mg/m² of lurbinectedin:

a)

metastatic

SCLC with

disease

progression

after

chemotherapy,

- b) a platelet count of at least 100,000/mm³,
- c) an absolute neutrophil count of at least 1500 cells/mm³, and
- d) ≤ Grade 1 hepatotoxicity;

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wherein the patient previously experienced ≥ Grade 3 hepatotoxicity subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin.

56. On information and belief, Qilu's manufacture, use, sale, offer for sale, and/or importation into the United States of Qilu's Generic Product prior to the expiration of the '806 Patent, including any applicable exclusivities or extensions, will actively induce infringement of at least Claim 1 of the '806 Patent under 35 U.S.C. § 271(b). Qilu will aid another in the infringement of one or more claims of the '806 Patent.

57. On information and belief, Qilu's Generic Product will have instructions for use that substantially copy the instructions for Zepzelca®, which disclose and encourage the practice of all the elements of one or more claims of the '806 Patent, including at least Claim 1. On information and belief, the proposed labeling for Qilu's Generic Product will direct the use of Qilu's Generic Product for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering Qilu's Generic Product by intravenous infusion as a monotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will identify Grade ≥3 hepatotoxicity as an adverse reaction to treatment with 3.2 mg/m² of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering a reduced dose of 2.6 mg/m² lurbinectedin following a patient experiencing Grade ≥3 hepatotoxicity at the 3.2 mg/m² dose, and within 35 days of receiving a 3.2 mg/m² dose of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct that the reduced dose of 2.6 mg/m² lurbinectedin be administered when the patient has a platelet count of at least 100,000/mm³, an absolute neutrophil count of at least 1500 cells/mm³, and Grade ≤1 hepatotoxicity.

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58. On information and belief, Qilu's Generic Product, if approved by the FDA, will

be prescribed and administered by intravenous infusion as a monotherapy to patients with metastatic SCLC with disease progression after platinum-based chemotherapy, who experienced Grade ≥ 3 hepatotoxicity subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin and within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin, at a reduced dose of 2.6 mg/m² lurbinectedin when the patient has a platelet count of at least 100,000/mm³, an absolute neutrophil count of at least 1500 cells/mm³, and Grade ≤ 1 hepatotoxicity, which will constitute infringement of one or more claims of the '806 Patent, including at least Claim 1.

59. On information and belief, this directly infringing use will occur with Qilu's specific intent and active encouragement and will be a use that Qilu knows or should know will occur.

60. On information and belief, Qilu copied the claimed invention of the '806 Patent.

61. On information and belief, Qilu will actively induce, encourage, aid, and abet this prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs' rights under the '806 Patent.

62. On information and belief, Qilu's acts will be performed with knowledge of the '806 Patent and with intent to encourage infringement prior to patent expiry.

63. On information and belief, Qilu's statement of the factual and legal bases for its opinions regarding non-infringement and invalidity of the '806 Patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.

64.

Plaintiffs will be substantially and irreparably harmed by the infringing activities of Qilu as described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

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Count II

(Infringement of the '890 Patent)

65.

herein.

66. The Qilu Notice Letter indicates Qilu's intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product prior to expiration of the '890 Patent.

67. Qilu is aware of the '890 Patent, including as demonstrated by the Qilu Notice Letter. Also, on information and belief, Qilu is aware of the '890 Patent by virtue of its listing in the Orange Book since November 2025.

68. The submission of Qilu's ANDA seeking approval to engage in the commercial manufacture, use, offer for sale, or sale of Qilu's Generic Product, prior to the expiration of the '890 Patent, constitutes infringement of one or more claims of the '890 Patent under 35 U.S.C. § 271(e)(2)(A).

69. On information and belief, Qilu intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product with the proposed labeling immediately and imminently upon final approval of the Qilu ANDA.

70. The '890 Patent claims, inter alia, methods of treating metastatic SCLC using lurbinectedin in patients who have experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin. Claim 1 recites: A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to a patient having at the time of the administration of the dose of 2.6 mg/m² of lurbinectedin:

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Plaintiffs incorporate each of the preceding paragraphs 1 to 49 as if fully set forth

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a)

metastatic

SCLC with

disease

progression

after

chemotherapy,

b) a platelet count of at least 100,000/mm³,

c) an absolute neutrophil count of at least 1500 cells/mm³, and

wherein the patient previously experienced Grade 4 neutropenia or any grade

febrile neutropenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin.

71. On information and belief, Qilu's manufacture, use, sale, offer for sale, and/or importation into the United States of Qilu's Generic Product prior to the expiration of the '890 Patent, including any applicable exclusivities or extensions, will actively induce infringement of at least Claim 1 of the '890 Patent under 35 U.S.C. § 271(b). Qilu will aid another in the infringement of one or more claims of the '890 Patent.

72. On information and belief, Qilu's Generic Product will have instructions for use that substantially copy the instructions for Zepzelca®, which disclose and encourage the practice of all the elements of one or more claims of the '890 Patent, including at least Claim 1. On information and belief, the proposed labeling for Qilu's Generic Product will direct the use of Qilu's Generic Product for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering Qilu's Generic Product by intravenous infusion as a monotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will identify Grade 4 neutropenia and febrile neutropenia as adverse reactions to treatment with 3.2 mg/m² of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering a reduced dose of 2.6 mg/m² lurbinectedin following a patient experiencing Grade 4 neutropenia or any grade febrile neutropenia at the 3.2 mg/m² dose, and within 35 days of receiving a 3.2 mg/m² dose of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct that the reduced dose of 2.6 mg/m²

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platinum-based

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lurbinectedin be administered when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³.

73. On information and belief, Qilu's Generic Product, if approved by the FDA, will be prescribed and administered by intravenous infusion as a monotherapy to patients with metastatic SCLC with disease progression after platinum-based chemotherapy, who experienced Grade 4 neutropenia or any grade febrile neutropenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin and within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin, at a reduced dose of 2.6 mg/m² lurbinectedin when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³, which will constitute infringement of one

or more claims of the '890 Patent, including at least Claim 1.

74. On information and belief, this directly infringing use will occur with Qilu's specific intent and active encouragement and will be a use that Qilu knows or should know will occur.

75. On information and belief, Qilu copied the claimed invention of the '890 Patent.

76. On information and belief, Qilu will actively induce, encourage, aid, and abet this prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs' rights under the '890 Patent.

77. On information and belief, Qilu's acts will be performed with knowledge of the '890 Patent and with intent to encourage infringement prior to patent expiry.

78. On information and belief, Qilu's statement of the factual and legal bases for its opinions regarding non-infringement and invalidity of the '890 Patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.

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79.

Plaintiffs will be substantially and irreparably harmed by the infringing activities of Qilu as described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

Count III

(Infringement of the '490 Patent)

80.

herein.

81. The Qilu Notice Letter indicates Qilu's intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product prior to expiration of the '490 Patent.

82. Qilu is aware of the '490 Patent, including as demonstrated by the Qilu Notice Letter. Also, on information and belief, Qilu is aware of the '490 Patent by virtue of its listing in the Orange Book since November 2025.

83. The submission of Qilu's ANDA seeking approval to engage in the commercial manufacture, use, offer for sale, or sale of Qilu's Generic Product, prior to the expiration of the '490 Patent, constitutes infringement of one or more claims of the '490 Patent under 35 U.S.C.

§ 271(e)(2)(A).

84. On information and belief, Qilu intends to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Qilu's Generic Product with the proposed labeling immediately and imminently upon final approval of the Qilu ANDA.

85. The '490 Patent claims, inter alia, methods of treating metastatic SCLC using lurbinectedin in patients who have experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin. Claim 1 recites:
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Plaintiffs incorporate each of the preceding paragraphs 1 to 49 as if fully set forth

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A method of treating metastatic small cell lung cancer (SCLC) in a patient with disease progression after platinum-based chemotherapy, said method comprising administering, within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin by intravenous infusion as a monotherapy, a dose of 2.6 mg/m² lurbinectedin by intravenous infusion as a monotherapy to a patient having at the time of the administration of the dose of 2.6 mg/m² of lurbinectedin:

a)

metastatic

SCLC with

disease

progression

after

chemotherapy,

b) a platelet count of at least 100,000/mm³,

c) an absolute neutrophil count of at least 1500 cells/mm³;

wherein the patient previously experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving the dose of 3.2 mg/m² of lurbinectedin.

86. On information and belief, Qilu's manufacture, use, sale, offer for sale, and/or importation into the United States of Qilu's Generic Product prior to the expiration of the '490 Patent, including any applicable exclusivities or extensions, will actively induce infringement of at least Claim 1 of the '490 Patent under 35 U.S.C. § 271(b). Qilu will aid another in the

infringement of one or more claims of the '490 Patent.

87. On information and belief, Qilu's Generic Product will have instructions for use that substantially copy the instructions for Zepzelca®, which disclose and encourage the practice of all the elements of one or more claims of the '490 Patent, including at least Claim 1. On information and belief, the proposed labeling for Qilu's Generic Product will direct the use of Qilu's Generic Product for the treatment of patients with metastatic SCLC with disease progression on or after platinum-based chemotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering Qilu's Generic Product by intravenous infusion as a monotherapy. On information and belief, the proposed labeling for Qilu's Generic Product will identify Grade 3 thrombocytopenia with bleeding and Grade 4 thrombocytopenia as adverse reactions to treatment with 3.2 mg/m² of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct administering a reduced dose of 2.6 mg/m²

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platinum-based

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lurbinectedin following a patient experiencing Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia at the 3.2 mg/m² dose, and within 35 days of receiving a 3.2 mg/m² dose of lurbinectedin. On information and belief, the proposed labeling for Qilu's Generic Product will direct that the reduced dose of 2.6 mg/m² lurbinectedin be administered when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³.

88. On information and belief, Qilu's Generic Product, if approved by the FDA, will be prescribed and administered by intravenous infusion as a monotherapy to patients with metastatic SCLC with disease progression after platinum-based chemotherapy, who experienced Grade 3 thrombocytopenia with bleeding or Grade 4 thrombocytopenia subsequent to receiving a dose of 3.2 mg/m² of lurbinectedin and within 35 days of receiving a dose of 3.2 mg/m² of lurbinectedin, at a reduced dose of 2.6 mg/m² lurbinectedin when the patient has a platelet count of at least 100,000/mm³ and an absolute neutrophil count of at least 1500 cells/mm³, which will constitute infringement of one or more claims of the '490 Patent, including at least Claim 1.

89. On information and belief, this directly infringing use will occur with Qilu's specific intent and active encouragement and will be a use that Qilu knows or should know will occur.

90. On information and belief, Qilu copied the claimed invention of the '490 Patent.

91. On information and belief, Qilu will actively induce, encourage, aid, and abet this prescription and administration, with knowledge and specific intent that this use will be in contravention of Plaintiffs' rights under the '490 Patent.

92. On information and belief, Qilu's acts will be performed with knowledge of the '490 Patent and with intent to encourage infringement prior to patent expiry.

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93. On information and belief, Qilu's statement of the factual and legal bases for its opinions regarding non-infringement and invalidity of the '490 Patent is devoid of an objective good faith basis in either the facts or the law. This case is exceptional.

94.

Plaintiffs will be substantially and irreparably harmed by the infringing activities of Qilu as described above unless those activities are precluded by this Court. Plaintiffs have no adequate remedy at law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully request the following relief:

A. A Judgment that Qilu infringed one or more claims of United States Patent

Nos. 12,324,806, 12,433,890, and 12,440,490 by its submission of ANDA No. 221419 seeking FDA approval for the commercial manufacture, use, offer for sale, sale, and/or importation of Qilu's Generic Product before the expiration of the '806, '890, and '490 Patents under 35 U.S.C. § 271(e)(2)(A);

B. A Judgment that Qilu's commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Qilu's Generic Product will infringe one or more claims of United States Patent Nos. 12,324,806, 12,433,890, and 12,440,490 under 35 U.S.C. § 271(b);

C. A permanent injunction under 35 U.S.C. §§ 271(e)(4)(B) and/or 283 restraining and enjoining Qilu, and its officers, agents, servants, and employees, and those persons in active concert or participation with any of them, from engaging in the commercial manufacture, use, offer for sale, sale in, and/or importation into the United States of Qilu's Generic Product prior to the expiration date of United States Patent Nos. 12,324,806, 12,433,890, and 12,440,490, inclusive of any extensions;

D.

An Order under 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA

approval of ANDA No. 221419 under Section 505(j) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. § 355(j)) shall be a date that is not earlier than the expiration date of United States

Patent Nos. 12,324,806, 12,433,890, and 12,440,490, inclusive of any extensions;

E. A Judgment that the claims of United States Patent Nos. 12,324,806, 12,433,890, and 12,440,490 are valid and enforceable;

F.

If Qilu engages in the commercial manufacture, use, importation, offer for sale, and/or sale of Qilu's Generic Product prior to expiration of the '806, '890, and '490 Patents, a Judgment awarding damages to Plaintiffs resulting from such infringement, with all costs and interest;

G. A Declaration that this case is "exceptional" under 35 U.S.C. § 285 and an award of attorneys' fees;

H.

An award of costs and expenses in this action; and

I.

Such other and further relief as the Court may deem just and proper.

Dated: June 26, 2026

s/ Charles M. Lizza

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LOCAL CIVIL RULES 11.2 AND 40.1 CERTIFICATION

Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify that this matter is related to Jazz Pharmaceuticals Ireland Limited, et al v. Sandoz, Inc., et al, No. 3:24-cv-09110 (RK)(RLS) (D.N.J.) because it involves the same plaintiffs, some of the same patents, and other defendants seeking to make generic versions of the same branded pharmaceutical product.

I further certify that, to the best of my knowledge, the matter in controversy is not the subject of any other action pending in any court or of any pending arbitration or administrative proceeding.

Dated: June 26, 2026

s/ Charles M. Lizza

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